



SIU_{SA}

STRIKING AGAINST CORRUPTION

PROGRESS REPORT

To the President in terms of section 4(1)(f) of the Special Investigating Units and Special Tribunals Act No. 74 of 1996

**In Re: Investigation into the affairs of the Department of Home Affairs
as declared by Government Notice No. 50129 of 16 February 2024
Proclamation No 154 of 2024**

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2026



The independent public integrity and
anti-corruption authority for a corrupt
free South Africa

Tel: +27 (0) 12 843 0001
SIU Hotline: 0800 037 774
Email: info@siu.org.za
www.siu.org.za

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Distribution List

Addressees:	
Copy 1 of 2	Mr Matamela Cyril Ramaphosa: The Honourable President of the Republic of South Africa
Copy 2 of 2	Mr LG Lekgetho: Acting Head of the Special Investigating Unit

Summary Table

Proclamation Number:	154 of 2024
Name of State Institution:	Department of Home Affairs
Summary of Schedule to the Proclamation:	In terms of the Proclamation, the SIU is required to investigate, inter alia, the: <i>The issuance of permanent residence permits; corporate visas; business visas; critical/exceptional skills visas; study visas; retired persons' visas; work visas; and citizenship by naturalisation; contrary to-</i> <i>(aa) the Immigration Act, No. 13 of 2002;</i> <i>(bb) the South African Citizenship Act, No. 88 of 1995;</i> <i>(cc) manuals, guidelines, circulars, practice notes or instructions applicable to the Department;</i> <i>(dd) manuals, policies, procedures, prescripts, instructions, or practices of or applicable to the Department;</i> <i>Improper or unlawful conduct by officials or employees of the Department in relation to the installation of T200 firewalls; and</i> <i>Any irregular, unlawful or improper conduct by officials or employees of the Department or any other person or entity, in relation to the allegations as set out in paragraphs 1 and 2 of this Schedule.</i>
ENE Outcomes:	
Number of referrals made for disciplinary action against officials and/or Executives	6

Proclamation Number:	154 of 2024
Name of State Institution:	Department of Home Affairs
<i>Number of referrals made for administrative action</i>	100
<i>Number of referrals made to the relevant Prosecuting Authority (NPA and AFU)</i>	275
<i>Number of investigations closed out under a published proclamation</i>	111

List of Abbreviations

Abbreviation	Description
ABSA	Absa Group Limited
CNIO	Chief National Investigating Officer
COO	Chief Operations Officer
DG	Director-General
DPCI	Directorate for Priority Crimes Investigation
FIS	Forensic Investigation Specialist
FNB	First National Bank
MCS	Movement Control System
MDTT	Multi-Disciplinary Task Team
NAC	National Aviation Corporation
NPC	Non-Profit Company
PFL	Principal Forensic Lawyer
PFI	Principal Forensic Investigator
PRP	Permanent Residence Permit
RPV	Retired Permit Visa
SA ID	South African Identity Document
SAPS	South African Police Services
SAC	South African Citizen
SAQA	South African Qualification Authority
The Department	Department of Home Affairs
VAS	Visa Adjudication System

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Executive Summary

The Special Investigating Unit ("**the SIU**") is honoured to present the progress report to His Excellency, President Matamela Cyril Ramaphosa in terms of section 4(1)(f) of the Special Investigating Units and Special Tribunals Act, 1996 (Act No. 74 of 1996) ("**the SIU Act**") pursuant to the publication of Proclamation 154 of 2024 ("**the Proclamation**")

The President signed Proclamation No. 154 of 2024 mandating the SIU to investigate serious concerns relating to maladministration, procedural irregularities, and alleged misconduct within the Department of Home Affairs ("**the Department**").

The scope of the investigation was directed, *inter alia*, at examining the lawfulness, propriety, and procedural compliance associated with the processing, adjudication, and issuance of various categories of permits and visas, as defined in the proclamation. The SIU's mandate includes the assessment of whether such conduct has resulted in unlawful or improper benefit, financial loss to the State, or contraventions of applicable legislation and regulatory prescripts. The investigation was further intended to identify systemic weaknesses, determine accountability where wrongdoing was established, and enable the recovery of any losses suffered by the State, as well as the institution of appropriate civil or disciplinary proceedings where warranted.

The investigation entailed the comprehensive examination of the way the Department administered and exercised its statutory functions in relation to the processing, adjudication, and issuance of permanent residence permits, various categories of visas including, but not limited to, corporate, business, study, and work visas, and applications for South African citizenship. The investigation was directed at determining whether such administrative actions were undertaken in accordance with the prescripts of the Immigration Act, the South African Citizenship Act, and all applicable regulations, directives, and internal departmental policies and procedures. Particular attention was given to identifying instances of procedural non-compliance, irregular decision-making, abuse of discretion, or systemic administrative failures that may amount to serious maladministration and undermined the integrity of the immigration and citizenship regime.

The proclamation further encompassed an investigation into any unlawful, irregular, or improper conduct on the part of officials or employees of the Department, with reference to the procurement, installation, configuration, and ongoing management of critical information technology and security systems and the T200 firewall infrastructure. This aspect of the investigation was concerned with determining whether such conduct complied with applicable legislation, procurement frameworks, security protocols, and internal governance controls. The investigation sought to assess whether any deficiencies, irregularities, or deliberate misconduct in relation to these systems compromised, or had the potential to compromise, the integrity, confidentiality, and security of departmental operations, data, and service delivery, and whether such conduct resulted in unlawful benefit, exposure to risk, or prejudice to the State.

1. Summary of SIU Outcomes and Consequence Management



1.1. Number of referrals made for Disciplinary Action against Officials and/or Executives

The SIU made six disciplinary referrals to the Department, which included both junior and senior officials of the Department.

1.2. Number of referrals made for Administrative Action

The SIU made 99 referrals in respect of foreign nationals who obtained their visas fraudulently, to the Department for administrative action and deportation. In addition, the SIU made a referral against Mr. Kudakwashe Mpofu for administrative action and deportation after completion of his sentence.

1.3. Number of referrals made to the Relevant Prosecuting Authority

The SIU made 275 criminal referrals to the National Prosecuting Authority ("**NPA**") against foreign nationals who obtained their visas but had submitted fraudulent supporting documents in their visa applications. The 275 referrals include officials of the department. The SIU is working with the NPA on these matters.

2. The SIU'S Legislative Mandate

Empowering legislation:

Special Investigating Units and Special Tribunals Act, 1996 (Act No. 74 of 1996) ("**the SIU act**").

Mandate:

Investigate serious malpractices or maladministration in connection with the administration of state institution, State assets and public money as well as any conduct which may seriously harm the interest of public.

Vision:

The independent public integrity and anti-corruption authority for a corruption-free South Africa.

Mission:

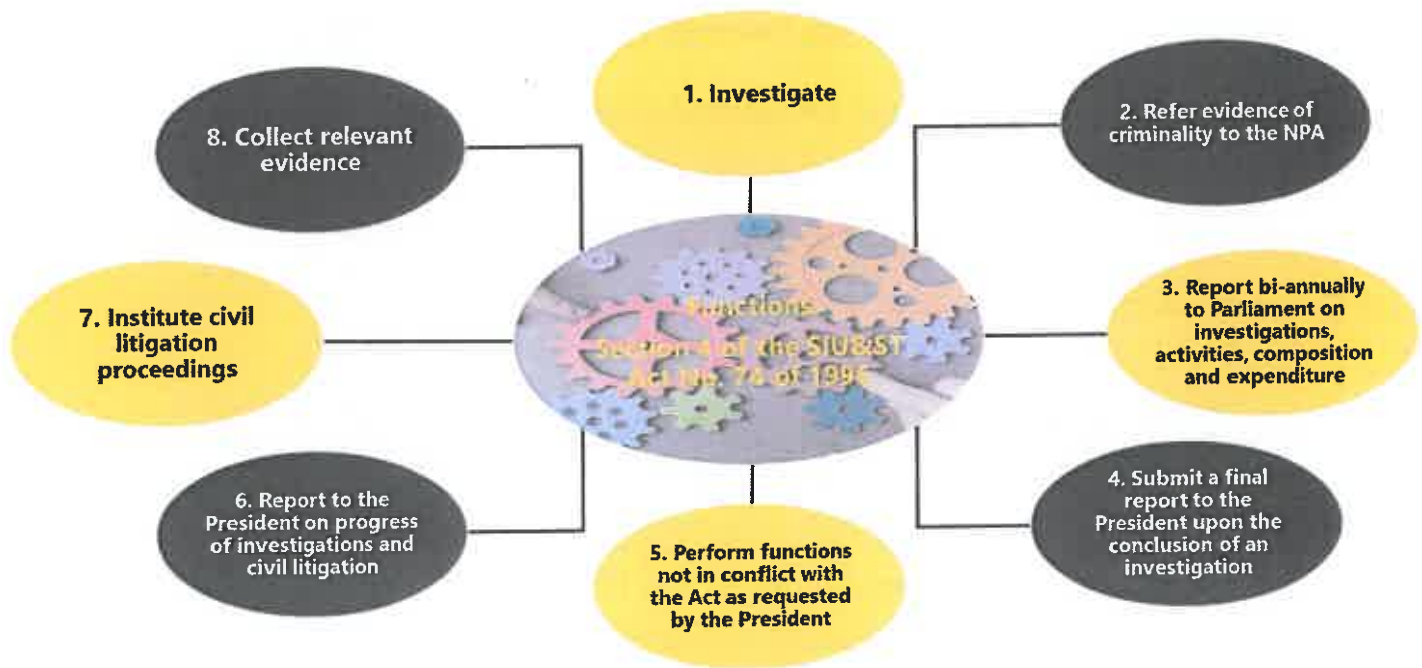
Protecting the public interest and assets through prevention measures and systemic investigations to eradicate fraud, maladministration and corruption.

Values:

- Integrity

- Co-operation
- Professionalism
- Efficiency
- Independence

3. The Functions of the SIU



4. Legislative Framework

4.1. The Immigration Act, 2002 (Act No. 13 of 2002)

The purpose of the Immigration Act is to provide for the regulation of admission of foreigners to, their residence in and their departure from the Republic of South Africa. Various permits and visas issued in the Republic are issued in terms of this Act.

4.2. The South African Citizenship Act, 1995 (Act No. 88 of 1995)

The purpose of the Citizenship Act to provide for the acquisition, loss and resumption of South African citizenship.

4.3. Public Finance Management Act, 1 of 1999 as Amended

The purpose of the Act is to provide mechanism that ensures transparency, accountability, and efficient management of public money, including revenue, assets, and liabilities, for national and provincial governments. It assigns responsibilities to accounting officers, mandates regular reporting (like annual reports), and provides frameworks for procurement and budget control to ensure public funds are used effectively and lawfully

- i. **Sections 36 to 45** of the PFMA are applicable to all departments and Constitutional institutions.
- ii. In terms of **Section 36(2)(a)** of the PFMA, the Chief Financial Officer is the accounting officer of the Department thereto.
- iii. **Section 38(1)(a)(iii)** of the PFMA provides that the Accounting Officer of the Department, trading entity or constitutional institution must ensure that the Department, trading entity or constitutional institution has and maintains an appropriate procurement and provisioning system which is fair, equitable, transparent, competitive and cost-effective (in other words, in line with section 217(1) of the Constitution).
- iv. The Agency's supply chain management framework must comply with section 38(1)(a)(iii) of the PFMA as read with section 217 (1) of the Constitution.
- v. **Section 38(1)(c)(ii)** of the PFMA requires that the accounting officer of a Department, trading entity or constitutional institution must take effective and appropriate steps to prevent unauthorized, irregular, fruitless and wasteful expenditure and losses resulting from criminal conduct.
- vi. **Section 38(1)(h)** of the PFMA requires that the accounting officer of a Department, trading entity or constitutional institution must take effective and appropriate disciplinary steps against any official in the service of the department, trading entity or constitutional institution who—
 - i. *contravenes or fails to comply with a provision of this Act;*

- ii. *commits an act which undermines the financial management and internal control system of the department, trading entity or constitutional institution; or*
- iii. *makes or permits an unauthorised expenditure, irregular expenditure, or fruitless and wasteful expenditure;*
- vii. Section 44 of the PFMA deals with the assignment of powers and duties by the accounting officer within the department, trading entity or constitutional institution (Delegation of Authority).
- viii. Section 45(c) of the PFMA requires that an official in a Department, trading entity or constitutional institution must take effective and appropriate steps to prevent, within that official's area of responsibility, any irregular expenditure and fruitless and wasteful expenditure and any under collection of revenue due.

4.4. Financial Misconduct, offences and penalties

- i. In terms of section 81 of the PFMA,
 - “(1) An accounting officer for a department or a constitutional institution commits an act of financial misconduct if that accounting officer wilfully or negligently—
 - a) fails to comply with a requirement of section 38, 39, 40, 41 or 42; or
 - b) makes or permits an unauthorised expenditure, an irregular expenditure, or a fruitless and wasteful expenditure.
 - (2) An official of a department, a trading entity, or a constitutional institution to whom a power or duty is assigned in terms of section 44 commits an act of financial misconduct if that official wilfully or negligently fails to exercise that power or perform that duty.”
- ii. In terms of section 86 of the PFMA the following offences and penalties are provided:
 - (1) An accounting officer is guilty of an offence and liable on conviction to a fine, or to imprisonment for a period not exceeding five years, if that accounting officer wilfully or in a grossly negligent way fails to comply with a provision of section 38, 39 or 40.

- (2) An accounting authority is guilty of an offence and liable on conviction to a fine, or to imprisonment for a period not exceeding five years, if that accounting authority wilfully or in a grossly negligent way fails to comply with a provision of section 50, 51 or 55.
- (3) Any person, other than a person mentioned in section 66 (2) or (3), who purports to borrow money or to issue a guarantee, indemnity or security for or on behalf of a department, public entity or constitutional institution, or who enters into any other contract which purports to bind a department, public entity or constitutional institution to any future financial commitment, is guilty of an offence and liable on conviction to a fine or to imprisonment for a period not exceeding five years."

4.5. The Constitution of the Republic of South Africa ("the Constitution")

Section 217 of the Constitution is the basis upon which all procurement practices within the public sector are developed. the Constitution demands that:

- "(1) When an organ of state in the national, provincial or local sphere of government, or any other institution identified in national legislation, contracts for goods or services, it must do so in accordance with a system which is fair, equitable, transparent, competitive and cost-effective."*
- (2) Subsection (1) does not prevent the organs of state or institutions referred to in that subsection from implementing a procurement policy providing for –*
 - a) categories of preference in the allocation of contracts;*
 - b) the protection or advancement of persons, or categories of persons, disadvantaged by unfair discrimination."*

Section 33(1) further indicates that "Everyone has the right to administrative action that is lawful, reasonable and procedurally fair.

4.6. Prevention of Corrupt Activities Act No. 12 of 2004

The Prevention and Combating of Corrupt Activities Act No. 12 of 2004 provides for the prevention and combatting of corruption and corrupt activities and to provide for the offence of corruption and offences relating to corrupt activities.

4.7. Prevention of Organised Crime Act No. 121 of 1998

The Prevention of Organised Crime Act No 121 of 1998 provides for the prohibition and combatting of organised crime and money laundering and to criminalise certain activities and provide for the recovery of the proceeds of unlawful activity.

4.8. Special Investigating Unit and Special Tribunal Act 74 of 1996 ("SIU Act")

The act provides the legal authority for the SIU to investigate allegations of corruption, maladministration, fraud, and unlawful expenditure, and to institute civil proceedings for recovery.

Section 4(1)(c)- Investigate serious maladministration, improper conduct, or unlawful expenditure of public money.

Section 5- Powers to subpoena, search and seize, and compel testimony.

Sections 6 & 7- Referral of evidence to relevant prosecuting or disciplinary authorities.

5. Summary of findings

5.1. Focus Area: 1 - Application and approval processes of Visas and Permits - Study Visas

During June 2024, the SIU received allegations from the Department's Counter Corruption Unit concerning irregular issuance of study visas to foreign nationals. These allegations cover the period 01 January 2021 to 30 November 2023.

On 12 June 2024, the SIU formally requested the Department to provide study visa applications submitted by Nigerian foreign nationals at the Cape Town VFS office for the abovementioned period. The focus on Nigerian foreign nationals was dictated by the data indicating that officials predominantly adjudicated on Nigerian nationals, rather than other foreign nationals.

On 18 July 2024, the SIU received a total of 2 557 study visa applications submitted by Nigerian foreign nationals to the Department for the abovementioned period. Phase 1 of the investigation focused on 426 study visa applications.

The SIU conducted an investigation to determine whether the study visas were issued in compliance with the relevant legal prescripts and the applicable Standard Operating Procedures, including the verification of supporting documents submitted by the foreign nationals in their respective applications.

The SIU found that the applicants used fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Letters for confirmation of registration with different institutions of higher learning.
- Fraudulent medical certificates.
- Fraudulent radiologist certificates.
- Fraudulent medical aid membership numbers/certificate,
- Fraudulent verification of criminal records.

The SIU identified evidence pointing to criminality and referred those matters to the NPA to consider instituting criminal proceedings against the foreign nationals implicated.

The SIU identified evidence pointing to misconduct in respect of officials and referred this to the Department to consider instituting disciplinary proceedings.

5.2. Focus Area: 2 - Application and approval processes of Visas and Permits

5.2.1. Pastors and Prophets

The SIU was provided with the Ministerial report from the Department, which alleges that pastors and prophets, who are foreign nationals, may have been issued visas in contravention of the applicable legal prescripts.

The SIU requested the application documents submitted by the pastors and prophets to the Department, along with the visas issued to them, in order to determine the nature of their entry,

the issuance of the visas, and whether such visas were granted in accordance with the Standard Operating Procedures, legal prescripts, and the verification of supporting documentation, including notary, life partnership, financial support and sponsorships attached to their applications

The SIU found that some pastors and prophets enter South Africa on visitor and holiday visas, but they then enter into marriages of convenience and fraudulent life partnerships, and these are then used to facilitate the issuance of Permanent Residence Permit ("**PRPs**").

Other pastors and prophets enter South Africa in accordance with Section 27(f) of the Immigration Act by providing and submitting financial documentation that demonstrates that they are financially independent, with the aim of obtaining PRPs. The financials submitted to the Department were found to be fraudulent.

The SIU found that the Pastors and Prophets use fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Fraudulent business interest.
- Fraudulent business partnership.
- Fraudulent notary agreement.
- Fraudulent bank statement.
- Fraudulent Financial Statements allegedly audited by Chartered Accountants.
- Fraudulent Employment Contract.

The SIU found that the pastors and prophets circulate the fraudulent supporting documents among themselves and utilize the same fraudulent documents for their respective applications. The said documents are, but not limited to:

- Company email Address,
- Physical Address, and
- Auditors and Chartered Accountants.

5.2.1.1 Pastor 1

In 2015, Pastor 1 applied for the renewal of a holiday visa, although there is no record of any previous visa(s) in the system. In 2018, he applied as the main applicant and was issued a PRP for himself, his wife ("**Subject 1**") and their two daughters.

The PRP was approved by an Adjudicator at the Department, who was later identified as a member of Pastor 1's church, representing a clear conflict of interest.

Pastor 1 applied for a PRP in terms of section 27(f) of the Immigration Act, based on financial independence. In support of his application, he submitted a letter allegedly issued by a Chartered Accountant ("**CA**") as proof of financial independence. However, the CA confirmed to the SIU that he did not draft the letter and that he was paid R500 by a Nigerian foreign national ("**Subject 2**"), in exchange for his signature.

Pastor 1's claim of financial independence included the submission of proof of the purchase of an aircraft, as well as the presentation of bank statements to the Department. The SIU established that Pastor 1 paid an amount of USD 1.2 million in cash to purchase an aircraft. Pastor 1 indicated that the funds were sourced from his Non-Profit Company ("**NPC**"), which raised concerns regarding financial transparency and potential money-laundering activities.

The CA further confirmed that he did not review any supporting documentation, including the proof of an aircraft purchase or bank statements.

Subject 2 confirmed that the letter was drafted by him and that the PRP application was submitted by Pastor 2, who had an active role in facilitating fraudulent applications.

In assessing the claim of financial independence made by Pastor 1 in his application, the SIU conducted a financial analysis involving Pastor 1 and found the following:

- Pastor 1 holds three bank accounts with major South African financial institutions, namely Capitec Business Bank Limited, FirstRand Bank Limited, and Nedbank Limited. These accounts have been subjected to scrutiny by the Financial Intelligence Centre ("**FIC**") due to suspicious transactions.

- Electronic credits totalling R5 972 503.10 were identified in a Nedbank account, with transaction references including "CAPITEC TITHE" and "Seed". These transactions were flagged by the FIC for investigation, indicating the potential misuse of religious donations.
- Electronic payments totalling R1 150 000.00 were identified between 2017 and 2018 from Pastor 1's NPC, to entity 1, owned by Pastor 2 and his wife ("**Subject 3**"). The transactions included references such as "Crossover T-shirts" and further establish a financial link between Pastor 1 and Pastor 2.
- Furthermore, Pastor 1 was found to hold directorships in 14 companies from 2012 to date. The investigation also determined that he has owned four properties in Pretoria, South Africa, since 2016.

5.2.1.2 The Pastors and Prophets syndicate network

Malawian foreign nationals, Pastor 2 and Subject 3, were issued with a retired visa and a PRP in August 2023. The SIU found substantial evidence of coordinated fraudulent activity, in that, in support of the PRP and visa applications, Pastor 2 and Subject 3 submitted fraudulent documentation.

Both Pastor 2's family and Pastor 1's family submitted letters of sponsorship allegedly issued by Pastor 2, the owner of a company that offers immigration services. Preliminary investigations have established that Pastor 2 is a central facilitator within the fraud network, coordinating immigration applications for other foreign nationals. The SIU conducted a financial analysis involving Pastor 2 and Subject 3, and found that:

- Pastor 2 and Subject 3 registered a company, with the Companies and Intellectual Property Commission ("**CIPC**") on 19 January 2017. At that time, Pastor 2 held a fraudulent Quota Permit, and Subject 3 held a fraudulently obtained Critical Skills Visa.
- On 30 October 2017, Pastor 2 and Subject 3 opened a FNB account. The following day, on 31 October 2017, a cash deposit of R20 000.00 was made into this account. On 3 November 2017, a further amount of R48 000.00 was deposited online from "JHB FREIGHT," a company

established as a public transport operator transporting goods within the SADC region. The same company made an additional cash deposit of R50 000.00 on 13 November 2017.

- Following the opening of the bank account, the SIU identified transactions that did not relate to legitimate business activities. These transactions were largely in round figures and occurred within a few months of the company commencing operations.

5.2.1.3 Pastor 3 and his wife ("**Subject 4**")

Pastor 3 entered South Africa on 8 August 2002 using a Visitor's Visa. On 9 December 2003, Pastor 3 entered into a life partnership agreement with a South African national ("**Subject 5**").

The SIU interviewed Subject 5 regarding the life partnership agreement entered into with Pastor 3. During the interview, Subject 5 indicated the following:

- During the period 2003/2004, Subject 5 was approached by a friend ("**Subject 6**"), who inquired whether she was interested in making extra money.
- Subject 6 further informed Subject 5 that a foreign national was offering her money in exchange for marriage. Subject 5 declined the offer, citing her inability to speak English and noting that she was in a romantic relationship with a South African national during that period.
- The following day, Subject 6 and Subject 5 allegedly met the foreign national near a Chicken Licken outlet in Roodepoort, where the foreign national took Subject 5's identity document and went inside the court with it. He requested Subject 5 to sign documents that were unknown to her. Upon his return, he gave Subject 5 R400. Subject 5 informed the SIU that, according to her understanding, the money was for signing the papers. She also insisted that she was not entering into a marriage with the foreign national.
- During the interview, Subject 5 was presented with an affidavit confirming that she had entered into a permanent spousal relationship with Pastor 3. Subject 5 acknowledged that her name and identity number appeared in the affidavit as hers. However, she denied that the handwriting in the affidavit containing her name was hers. Additionally, she denied having resided at the address referenced in the affidavit.

- Subject 5 was further presented with the Life Partners Affidavit dated 6 January 2003. The affidavit indicates that Subject 5 and Pastor 3 entered into a life partnership intended to be permanent, with an agreement to support each other emotionally and financially. However, Subject 5 denied having any knowledge of or involvement with the affidavit.
- The SIU presented Subject 5 with a Notarial Agreement dated 9 December 2003, entered into by Pastor 3 and Subject 5. She indicated that she had no knowledge of the document and denied having entered into any agreement with Pastor 3.

On 5 February 2004, the Department issued Pastor 3 a Permanent Residence Permit based on the life partnership agreement with a South African National. Pastor 3 applied for naturalisation with the Department on 7 August 2014. In his application, it was indicated that he had entered into a life partnership with a South African national, Subject 7. Subsequently, Pastor 3 was issued a Certificate of Naturalisation dated 20 August 2018. In an attempt to interview Subject 7, the SIU conducted an ITC search and traced her address. However, the search revealed that Subject 7 is deceased. Records from the National Population Register reflect that Pastor 3 married Subject 4 on 5 March 2020.

Subject 4

Subject 4 entered South Africa using a passport from the country of her origin on 6 February 2004. She extended her temporary visas from 6 February 2004 until May 2004. On 10 June 2004, she married South African national ("**Subject 8**"). On 18 June 2004, eight days after her marriage to Subject 8, Subject 4 applied for a Permanent Residence Permit based on her marriage to him. She was issued the Permanent Residence Permit on 11 October 2006. A South African non-citizen identity document was issued to Subject 4 on 16 March 2007.

Subject 4 applied for citizenship by naturalisation in South Africa on 21 January 2010. The application was subsequently approved on 7 September 2010. Following her naturalisation, Subject 4 applied for a South African citizen ID document, which was approved and issued.

On 11 June 2014, the Department conducted a determination of status search on Subject 4 and Subject 8. It was established that Subject 4 and Subject 8 divorced on 5 August 2014 at the Johannesburg Divorce Court.

An ITC search was conducted on Subject 8 with the intention of conducting an interview and verifying the validity of his marriage to Subject 4. However, there was no response from the phone numbers listed in the ITC database. The residential address provided was that of a shop in Johannesburg Central. As a result, the SIU was unable to interview Subject 8. Records indicate that Subject 4 married Pastor 3 on 5 March 2020.

Pastor 3 and Subject 4

Pastor 3 obtained a Permanent Residence Permit through his marriage to Subject 5, while Subject 4 was issued her permit through her marriage to Subject 8. However, Subject 5 denied having entered into a marriage with Pastor 3. The SIU was unable to trace Subject 8 to verify his marriage with Subject 4. It should be noted that when Subject 4 entered into her marriage with a South African male, she was using the surname of Pastor 3. According to the available evidence, Subject 4 entered a marriage with Pastor 3 in 2020.

In his application for citizenship by naturalisation, Pastor 2 listed an address in Johannesburg, as his residential address. At that time, he was allegedly in a life partnership with Subject 7. Conversely, Subject 4 also used the same address in her application for citizenship by naturalisation, despite being married to Subject 8.

The Department's records indicate that a child was born to parents Subject 4 and Pastor 3 on 16 October 1999. The parents registered her birth late in South Africa on 29 April 2015. During this period, Subject 4 was allegedly married to Subject 8, and Pastor 3 was married to Subject 7. It is evident that Pastor 3 and Subject 4 were in a relationship, despite their attempts to create the impression that they were married to other persons. They registered a late birth registration for their child during the period when they were allegedly married to other spouses. Furthermore, Subject 4 used Pastor 3's surname as her maiden name when entering into a subsequent marriage with another individual.

It appears that the Department issued Pastor 3 and Subject 4 PRPs because they were married to South Africans. However, the evidence indicates that they had entered marriages of convenience and further supplied falsified documentation in support of their applications for the PRP. The SIU investigation is ongoing.

5.2.1.4 Pastor 4

The SIU received and investigated an allegation regarding the issuance of a fraudulent PRP to a Zambian foreign national, Pastor 4, who was issued a South African identity document, upon naturalisation. However, the Department held no record of a PRP to support his naturalisation. The SIU found that:

- Pastor 4 submitted a late registration of birth application for the purpose of obtaining a South African identity document.
- As part of his application, Pastor 4 alleged that the late Subject 9 and the late Subject 10 were his biological parents. However, the investigation revealed that they were not his biological parents.
- Further investigation revealed that the late Subject 9 and Subject 10 had only two sons. It was established that Pastor 4 was not a sibling or relative of these two individuals.
- In December 2024, the SIU was invited to participate in a strategic joint operation conducted by the Directorate for Priority Crime Investigation ("**DPCI**") and the Department's Counter Corruption Unit. The operation involved verification, tracing, interviews, and collection of documents in connection with investigations into the activities of various pastors and prophets.
- The operation revealed that Pastor 4 only applied for late birth registration in 1997 and subsequently obtained re-issuances of his South African identity document on four occasions, the latest being on 03 July 2013.
- The SIU's investigation revealed no evidence supporting a naturalisation application through the issuance of a visa or PRP to Pastor 4. However, evidence was found indicating that he

submitted a late birth registration application to obtain a South African identity number on the false premise that he was born in South Africa.

- Furthermore, he falsified his identity by claiming to be the biological son of the late Subject 9 and Pastor 4, which was not the case.

The SIU referred the matter to the NPA in May 2025 for a criminal investigation.

5.2.1.5 Pastor 5

On 8 March 2006, Pastor 5 entered the country from Nigeria, using passport on a Visitor's visa valid until 27 March 2006. Subsequently, his visitor's visa was extended multiple times, until 1 March 2011.

Pastor 5 applied for a change of condition on his existing visa to a Relative Visa. The new visa was issued on 9 December 2010, and was valid until 31 December 2012, with the condition that he reside with his South African Citizen Spouse ("**SAC**") spouse, Subject 11, whom he married on 25 June 2010. On 28 January 2013, he extended his Relative Visa, which was then valid until 26 January 2015, to continue residing with his spouse, Subject 11.

He further extended his Relative Visa, which was issued on 15 February 2015 which remained valid until 16 February 2017.

Pastor 5 applied for a Permanent Resident Permit through his marriage to Subject 11 on 18 January 2016. He was issued the permit on 14 November 2017. His Permanent Residence Permit application revealed the following:

- In support of his application, Pastor 5 submitted a copy of the letter of consent and financial support from his wife, Subject 11, stating that she is personally responsible for all his expenses.
- He also submitted the Absa bank statement of his wife, Subject 11, as proof of her financial support.
- Pastor 5 also submitted a copy of the affidavit signed by Subject 11, stating that they are both living together in Pretoria.

- He further submitted a medical certificate bearing the signature of General Practitioner (“GP”), who allegedly examined him.

The SIU found that, Pastor 5 had submitted a fraudulent Medical Certificate as part of the supporting documentation for his Relative Permit application. The investigation showed that the medical certificate purportedly signed by a GP at a medical centre in Pretoria, was forged.

Further to the investigation, the SIU interviewed Subject 11 regarding her marriage to Pastor 5, and she stated the following:

- Pastor 5 and Subject 11 met in 2008 in Pretoria, at a club.
- On 25 October 2010, they went to Home Affairs to register their marriage, with the condition that he gives her money every month.
- They have never lived together as a couple, and she does not know the whereabouts of Pastor 5. To date she has received about R4 000.00 from Pastor 5.

Subject 11 was shown documents she allegedly signed regarding Pastor 5’s application to the Department for Permanent Residency, and she stated the following:

- She did not write nor sign the letter of consent and financial support for Pastor 5, as she was not working when they met and continues to be unemployed to this date.
- The Absa bank statement is not hers, as she is using Nedbank and has never used Absa Bank.
- She did not write the police affidavit, and the signature on it is not hers.

The SIU met with the GP, and he provided an affidavit in which he stated the following:

- He certifies that he did not assess Pastor 5.
- He certifies that the handwriting of the patient’s name is not his.
- He certifies that the said documentation is an obvious forgery and was not authored or signed by him.

It appears that, the Department issued Pastor 5 with a PRP, allowing him to reside in South Africa, based on the fraudulent documentation he submitted in support of his application. It appears that the marriage is purely transactional and is not genuine. Furthermore, the spouse had no income, thus contradicting the sponsorship requirements.

5.2.1.6 Pastor 6

Pastor 6, a Nigerian national, entered South Africa in 2007 on an asylum seeker permit. At the time, he resided with Subject 12, a South African national who was his life partner.

In 2008 the Director-General of the Department issued Circular 10 of 2008 ("**the Circular**") which confirmed a court order to the effect that asylum seekers and refugees, in terms of the Refugees Act 130 of 1998, were allowed to apply for visas or permits under the Immigration Act 13 of 2002. Pastor 6 subsequently converted his asylum seekers permit to an immigration permit, which was valid until 31 December 2010.

The immigration permit is granted to a foreigner who can demonstrate that he or she qualifies for any of the permits granted to foreign nationals in terms of South African Immigration law. The Circular was withdrawn in February 2016 when the Directive was issued. This led to the issuance of the immigration permit to Pastor 6. He continued to reside with his life partner during the validity period of the said permit.

Following the expiry of the permit, Pastor 6 applied for recognition of a life partnership with a South African female citizen, Subject 13, on 21 November 2013. Pastor 6 then became eligible to apply for, and was granted, a further permit authorising his residence in South Africa as the spouse/life partner of a South African citizen. This permit was valid until 10 November 2016.

According to a marriage certificate furnished to the SIU by the Department, the records reflect that Pastor 6 and Subject 13 were married on 21 November 2013, with the marriage certificate issued on 11 February 2014. Department records further indicate that the marital status of Pastor 6 and Subject 13 remains recorded as "still married" to date.

Pastor 6 renewed his permit and was issued with a Temporary Residence Renewal ("**TRR**"), which was valid from 20 October 2016 and expired on 10 November 2016. The SIU found that, one of

Pastor 6's applications for a TRR, was rejected on the basis that the radiological and medical reports submitted in support of the application were invalid. Upon reviewing the rejected application, the following is noted:

- A life partnership agreement was entered into on 21 November 2013, being the same date on which Pastor 6 and Subject 13 were married.
- Pastor 6 and Subject 13 further deposed to an "Affidavit in Respect of Parties to a Permanent Spousal Relationship" on 14 October 2016.
- Two birth certificates, relating to two children, were attached to the application, reflecting that both children were born on 09 June 2014.
- Subject 13 stated in a letter that she was sponsoring Pastor 6 as her partner for the duration of his stay in South Africa; and
- A three-month bank statement from Subject 13's Capitec Bank account was submitted.

One of the documents received by the SIU was email correspondence between the Department and the notarial firm ("**Notarial firm**"), which was purportedly responsible for drafting a life partnership agreement between Pastor 6 and Subject 13. The correspondence indicates that the Department sought to verify whether the Notarial firm were indeed the authors of the document.

The Notarial firm responded to the Department, stating that the agreement in question was fraudulent and forged, as they had not signed or executed the life partnership agreement of Pastor 6 and Subject 13. The investigation is ongoing.

5.3. Application and approval processes of Visas and Permits - Work Visas and Critical/Exceptional Skills Work Visas.

The SIU found that the applicants use fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Fraudulent letters of employment from prospect employers;
- Fraudulent letters confirming registration at tertiary institutions;

- Fraudulent Qualification from tertiary institutions;
- Fraudulent employment contracts;
- Fraudulent SAQA certificate; and

The investigation is ongoing.

5.4. Application and approval processes of Visas and Permits

5.4.1. Permanent Residence Permits

The SIU found that the applicants use fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Fraudulent spousal agreements.
- Fraudulent notary agreements.
- Fraudulent financial independence documents.

5.4.2. Citizenship by Naturalisation

The SIU found that the applicants use fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Proof of income.
- Marriage certificates.
- Late birth registration.
- Medical records.

5.5. Application and approval processes of Visas and Permits

5.5.1. Business Visa

The SIU found that the applicants use fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Fake confirmation of business partnership in South Africa.
- Fraudulent business interests in SA.

5.5.2. Corporate Visas

The SIU found that the applicants use fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Fake confirmation of business partnership in South Africa; and
- Fraudulent business interests in SA.

5.6. Application and approval processes of Visas and Permits

5.6.1. Retired Persons' Visas

The SIU found that the applicants use fraudulent supporting documents for their applications. The fraudulent documents used amongst others are:

- Fraudulent properties purchased in South Africa;
- Fraudulent conveyancer documents; and
- Fraudulent medical certificates.

5.7. Change of condition on temporary resident visas

5.7.1. Foreign National 4 Matter

On 14 March 2023, Foreign national 4 applied to the Department for a change in the conditions of his Temporary Resident Visa ("TRV"), seeking to convert it from a study visa to a retired person's visa in terms of section 20 of the Immigration Act, 2002 (Act No. 13 of 2002).

The visitor's visa, issued in terms of section 20 of the Immigration Act, in respect of the retired person's visa application, revealed the following:

- In support of his application for a retired person's visa, dated 14 March 2023, Foreign national 4 submitted a copy of his Nigerian passport which was valid from 9 March 2023 to 8 March 2028.
- Foreign national 4 further submitted a copy of his study visa. The study visa was issued by the Department's Head Office and was valid from 21 April 2023 to 20 April 2027. It was issued on the condition that he would pursue a Level 5 qualification in Information Technology System Development at a college in South Africa.

The SIU is investigating the issuance of fraudulent study visas covering the period 2021 to 2024. The SIU found that Foreign national 4 had submitted a fraudulent letter of enrolment from a college in South Africa as part of his supporting documentation for his study visa application. The matter was subsequently referred to the Specialized Commercial Crime Unit ("**SCCU**") on 27 January 2025. The SIU also found that, in support of his TRC retired person's visa application, Foreign national 4 submitted a copy of a medical certificate, which had been issued by a paediatrician.

The investigation further found that Foreign national 4 had purchased the following five properties in the City of Cape Town:

- A property in the City of Cape Town, valued at R2 500 000.00.
- A sectional property, valued at R1 030 000.00.
- A sectional property situated in Parklands in the City of Cape Town, valued at R1 150 000.00.
- A sectional property situated in the City of Cape Town, valued at R3 000 000.00.
- A sectional property valued at R1 080 000.00.

The SIU further conducted a financial analysis of Foreign national 4's Bank accounts. Foreign national 4 submitted a fraudulent letter from a South African College, and a study visa was subsequently issued based on these fraudulent documents, which he had submitted to open the aforementioned bank accounts.

- Money inflow: R53 687 682.81 for the period from January 2024 to June 2025.
- Money outflow: R30 799 639.35 for the period from January 2024 to June 2025.

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5.8. Foreign National 2 Matter

5.8.1. Fraudulent Permanent Resident Permit ("PRP") submitted by Zimbabwean Foreign National 2 to the North-West Development Corporation Board for employment as Asset Manager and Chief Financial Officer

During July 2023, an anonymous whistle-blower reported to the Department's Counter Corruption Unit an allegation of a fraudulent PRP issued to Foreign National 2. The matter relating to Foreign National 2 was among those referred to the SIU for investigation.

The SIU conducted its investigation and established that Foreign National 2 entered South Africa on a valid study visa, issued by the South African Embassy in Harare on 20 January 2011, pursuant to which he enrolled at the University of Johannesburg. He sat for the SAICA board examinations and became a Chartered Accountant.

Foreign National 2 was lawfully issued with another study visa, which expired while he was employed at an auditing firm in South Africa. Despite the expiry of his study visa, Foreign National 2 remained in the country and continued working until 2018, notwithstanding the fact that he did not possess a valid work permit during that period.

Foreign National 2 was thereafter found to be in possession of a PRP, which he contended that he purchased in 2018 for an amount of R3 000.00 from an entity that is not linked to the Department.

The SIU investigation found that, in addition to the fraudulent PRP, Foreign National 2 was also in possession of the following fraudulent documents:

- Critical/Exceptional Skills Visa;
- Work permit; and
- Exemption Certificate.

The SIU found that Foreign National 2 intentionally used and presented the fraudulent PRP and Critical Skills Visa and acquired the following benefits:

- Employment at the North-West Development Corporation as an Assets Manger from 01 May 2021 to 01 May 2023, earning a remuneration of R900 000.00 per annum.

- Employment at the North-West Development Corporation as a Chief Financial Officer from 01 June 2023 to 31 May 2028 earning a remuneration of R1 632 257.00 per annum.
- Obtained a Traffic Registration Number at the Mmabatho – DLTC & VTS to obtain a Learners' Driver's License and the Driver's license.
- Obtained finance from banks and purchased the following vehicles:
 - Land Rover Sport (2023/08/22).
 - BMW 3 Series (2019/01/07).
 - Ford Ranger (2021/10/07).

The Exemption Certificate dated 12 December 1996, purportedly issued by the Department to Foreign National 2, was found by the SIU to be fraudulent. This conclusion is based on a material discrepancy. According to his passport, Foreign National 2 was born on 21 September 1991 and would therefore have been only five years old at the alleged date of issue. Consequently, the Exemption Certificate could not lawfully have been issued to him on that date.

The SIU referred the matter to the NPA on 25 June 2024 for criminal investigation.

The matter was subsequently enrolled in the Mmabatho Regional Court under Case Number RCC4/2025, where Foreign National 2 faced two counts of fraud. He was convicted on 17 October 2025 and sentenced on 12 November 2025. The sentence was as follows:

- Sentence for Count 1.
 - Sentenced to three years imprisonment in terms of section 276(1)(i) Act 51 of 1977 from which he may be placed under correctional supervision in the discretion of the Commissioner of Correctional Services or a parole board.
- Sentence for Count 2
 - Three years imprisonment suspended for five years on condition that accused is not convicted of fraud or of any offence referred to in Chapter 2 of the Prevention and Combating of Corrupt Activities Act, Act 12 of 2004, committed during the period of suspension.

5.9. Asylum Seekers

5.9.1. Search and Seizure

The whistleblower alleged that a foreign national could enter the country and obtain an asylum seeker temporary visa. It is while in the country, that these "bogus" asylum seekers can then obtain a permit fraudulently that would allow them to stay in the country and which appear to later be used to apply for PRPs and ultimately, are used to obtain South African citizenship.

The SIU further received information that foreign nationals work with syndicates that have already recruited employees within the Department to assist them to obtain Asylum Seekers' Permits. The advantage being taken with the asylum seekers permit is that once a foreign national declares that they intend to apply for asylum seekers' status, they must be issued with such without going into the merits of the request for asylum.

They can remain in the country with this permit, and if their applications are rejected, they are entitled to exhaust their rights of review or appeal, going all the way to the Constitutional court while remaining in the country regardless of the reasons advanced for such application for asylum.

To test the veracity of the allegations, the SIU, with the assistance of the DPCI, applied for and received an order from the Special Tribunal to search five Refugee Reception Offices to determine how an asylum seekers permit could result in them obtaining permanent residence. Laptops, desktops, cellphones, memory sticks/external hard drives, files, and immediate files (files that an individual official was working on at the time) were obtained during the search and seizure. Computers were imaged by the SIU, and the SIU analysed the cell phones seized and found that officials are communicating with foreign nationals.

It appears that the foreign nationals pay the officials via FNB E-Wallet with amounts ranging from R500.00 – R3 000.00. The said payments are for facilitating and unlawfully issuing permits and visas to undeserving foreign nationals. **Money is obtained from the asylum seekers as follows:**

- Cash: Office doors are closed to obstruct cameras and money is concealed in the application forms.

- FNB E-Wallet: Non-RICA or fraudulently RICA cellphone numbers are given to asylum seekers to deposit the money.
- Asylum seekers are made to make E-wallet payments to themselves and then give OTP numbers to officials to withdraw.
- In Kind: asylum seekers make payment in kind, that is, paying for officials private rent and other services.
- Officials have dummy phones on which transactions and communication are conducted to conceal tracing.

5.10. Other prominent Investigations

5.10.1. McLaren Investigation - Study Visas

5.10.1.1. Visitor's Visa Renewal and Temporary Residence Visa Renewal

The SIU received an allegation from the Department's Counter Corruption regarding two Nigerian nationals involved in an accident in Cape Town while driving a McLaren vehicle. It was alleged that the two Nigerian nationals were in South Africa unlawfully.

5.10.1.1.1. Foreign national 3

- Foreign national 3 applied for a Visitor's Visa Renewal dated 20 December 2022 and was issued with a Temporary Residence Visa Renewal, to visit in South Africa on the premise that he was on holiday for a period of not more than three months.
- Foreign national 3 failed to depart the country upon the expiry of his visitor's visa renewal within the period 20 December 2022 and 19 March 2023 and remained in the country and according to Movement Control System ("MCS") records, he departed South Africa on 5 May 2023, two months after the expiry of the visa.
- Post his departure in 2023, Foreign national 3 was identified as one of the two individuals involved in the McLaren car accident that took place in Cape Town on 2 March 2025. However, MCS has no records of how he re-entered the country.

A criminal referral was submitted to the NPA on 5 May 2025.

5.10.1.1.2. Foreign national 4

- Foreign National 4 applied on 16 January 2024 for a study visa. The application was adjudicated and approved by an Adjudicator on 23 January 2024.
- As part of the application, Foreign national 3 submitted proof of registration at a Higher Institution of Learning. Verification received from the college indicates that Foreign national 4 was not registered at the institution during the period in question.
- Foreign national 4 further provided a medical certificate allegedly issued by a South African doctor as part of the application for the study visa. The doctor has confirmed the said certificate is fraudulent.
- Foreign national 4 was issued with a study visa however in support of his study visa application he submitted fraudulent documentation. He is identified as the second individual involved in the McLaren car accident that took place in Cape Town on 02 March 2025.

A criminal referral was submitted to the NPA on 5 May 2025.

5.10.2. Other allegations received from the Department

5.10.2.1. Departmental Officials - Misconduct

5.10.2.1.1. Official 1 and Official 2

The SIU received a report from the Department which included information and evidence obtained from the Department-issued cellphone which was allocated to Official 2. Additionally, evidence was gathered from two cellphone numbers belonging to Official 1. The evidence comprised a money flow trail and communications indicating the unlawful and illegal approval and issuance of permits.

Official 2 is employed as a Visa Adjudication System ("VAS") Assistant Application Administrator at the Department, and Official 1 was employed as an Adjudicator in the Permit section of the Department.

The SIU, acting in terms of Sections 5(2)(b) and (c) of the SIU Act, requested information from FNB. In response, the SIU obtained evidence indicating financial transactions from Official 2's FNB Account to a FNB account held by Official 1's husband. The details of these transactions are outlined in the following sequence of events:

- On 20 December 2021, at approximately 16:04, Official 2 sent an application via WhatsApp to Official 1 for approval.
- Official 1 responded to Official 2 via WhatsApp, confirming that she had approved the application.
- The SIU obtained evidence showing that Official 2, using a FNB Account, transferred an amount of R3 000.00 to a FNB Account held by Official 1's husband.
- The SIU also obtained evidence indicating that Official 1 received R3 000.00 through a FNB Account held by her husband. The payment was made from Official 2's FNB Account. The FNB statement for Official 1's husband's account, dated 21 December 2021, reflects the payment of R3 000.00.
- Furthermore, the SIU obtained evidence confirming that the Temporary Residence Permit was approved by Official 1.
- On 21 December 2021, between 09:59 am and 17:40 pm, Official 2 sent two applications, to Official 1 via WhatsApp for approval.
- The SIU obtained evidence showing that on 27 December 2021, at approximately 11:06 am, Official 2, using a FNB account, transferred R6 000.00 to a FNB account held by Official 1's husband.
- The SIU further obtained evidence indicating that Official 1 received R6 000.00 through a FNB account, held by her husband. The transfer originated from Official 2's FNB account. The FNB statement dated 27 December 2021 reflects the payment of R6 000.00.
- Lastly, the SIU obtained evidence confirming that the Temporary Residence Permits which were approved by Official 1, with copies of the approved permits issued by the Department.

In addition, the SIU, acting in terms of section 5(2)(b) and (c) of the SIU Act, requested information from Capitec Bank regarding an account held by Official 1. The information revealed that Official 1 has a Capitec account, which is not listed as the primary account. This account received a substantial number of cash deposits during the period 2017 to 2024, the source of which remains unknown. The SIU found that Official 1 received cash deposits to the value of R755 223.83.

Furthermore, the SIU has found that an entity, which is registered in the name of Official 1's husband, has been receiving payments from a FNB account with the description of a name appearing to be that of a foreign national and the reference "building material". In the context of the SIU's investigation into the fraudulent issuance of permits, the name of the foreign national may denote the name of an applicant or an agent acting on his or her behalf in seeking permit approval. The reference "building material" may be a pseudonym used to disguise the true nature of the transaction.

Considering the evidence referred to above, it is apparent that Official 2, in his capacity as a VAS Assistant Application Administrator at the Department and, Official 1, in her capacity as an Adjudicator in the Permit section of the Department unlawfully and intentionally benefited, either directly and/or indirectly, from issuance and sale of permits.

5.10.2.1.2. Official 3

This matter relates to the issue of fraudulent permits and visas by Official 3. During the period 1 January 2021 to 30 November 2023, Official 3 approved a total of 426 study visa applications. Official 3 was appointed by the Department on 1 March 2013 as a Senior Administrative Officer: Adjudication. In her capacity as an Adjudicator, she was responsible for adjudicating various permit and visa applications.

Official 3 resigned from the Department on 31 October 2023. The investigation found that Official 3 was involved in a syndicate operating as an organized network. This syndicate utilized false documents to facilitate the issuing of visas and permits. Further analysis indicates the transfer of funds within the syndicate, demonstrating coordinated financial movements.

Additionally, the investigation uncovered that individuals from Pakistan, Nigeria, and two South African nationals transferred funds into Official 3's Capitec and FNB accounts from December 2000 to the present.

The SIU requested bank statements of Official 3. It was noted from the documents submitted at the time of account opening that an identity document belonging to a South African national was also provided. Consequently, a request for the South African national's bank statements has also been made to facilitate the investigation.

The SIU analysed the bank statement, which further revealed that Official 3 is involved in a syndicate whereby certain individuals receive funds on her behalf from foreign nationals. These transactions are conducted using references such as "PRP," "Permit," or "Visa Process."

Upon receipt of these funds, the individuals promptly transfer the monies to Official 3's bank account, deducting their respective fees.

Official 3 has resigned from the Department however, investigations indicate that she remains involved in the syndicate and continues to receive funds from its activities.

Official 3 received substantial sums amounting to millions of rand through this syndicate, and the total quantum of her illicit gains remains a subject of the SIU's ongoing investigation.

5.11. Observations and Systemic Recommendations

5.11.1. Applications and issuance of Visas and Permits

The Standard Operating Procedures on Visas and permits are not adhered to, and no proper verification is done by adjudicators on documents received from visas and permit applicants. The SIU through its investigation revealed that this leads to:

- The fraudulent use of radiology/doctor certificates to obtain visas.
- The fraudulent use of the proof of higher learning registration to obtain visas.
- The fraudulent use of medical aid certificates to obtain visas.

Based on these observations, the following systematic recommendations are made:

- The Department should consider developing a step-by-step guideline on how verifications should be conducted.
- The Department should consider strengthening its verification process prior to the issuance of visas.
- The Department should consider having quality assurers assess applications prior to the issuance of visas.

5.11.2. Blank Corporate Certificate/Visas

Issuance of blank corporate certificate/visas to a company covering the number of foreign nationals the company intends to employ. The SIU through its investigation found that this leads to:

- Manipulation and fraud.
- No monitoring by the Department of the visas the company issues to the foreign nationals.
- No monitoring by the Department on the expiry of visas issued or cancelled because of the termination of employment.

Based on the SIU investigation, the following systematic recommendations were made to the Department on 11 December 2024:

- The Department should consider a system integration between them and the Department of Labour.
- The Department should consider enforcing compliance with its prescripts by the company issued with business visa to report to the Department upon termination or cancelation of visa.

5.11.3. Identity fraud to obtain passports for use in foreign countries to commit crimes

The SIU through its investigation and in conjunction with the Interpol found that:

- Foreign national use identity theft to obtain South African identify documents and use it outside the country to seek refugee elsewhere or commit crimes.

- The modus operandi is that they would work with officials of the Department to gain access to their offices, use fingerprints of South African nationals, but change the picture to that of a foreign national.

Based on the SIU investigations, the following systematic recommendations are made:

- Whilst the Department has/is implementing the biometrics system, it should consider more stricter controls in respect of the picture taken for the passport.
- The Department should consider strengthening the access control to its offices to identify any person or persons who access the offices of the Department.

5.11.4. Swapping and/or manipulation of the DNA to favour the foreign nationals to obtain PRPs

Swapping and/or manipulation of the DNA at the National Health Laboratory Services to allow the foreign nationals to obtain PRPs. Some visas require a DNA to be undertaken prior to being issued.

The SIU found that there is prima facie evidence that DNA is being manipulated to favour the foreign nationals. Though this may not be a finding strictly related to the Department, the SIU is alerting the Department to its observation in this regard.

The SIU through its investigation found that the lack of guidelines to adjudicate on retired visas and abuse of the retirement visa leads to:

- Manipulation and fraud.
- Abuse of the retired visas as there are no age restrictions.
- Part of the requirements to obtain a retired visa is proof of income of +/- R37 000, which is not monitored by the Department after issuance of the retirement visa.

Based on the SIU investigations, the following systematic recommendations are made:

- The Department should consider engagement with its Legal Department with a view to review the applicable prescript and developing strict requirements and monitoring mechanisms.

5.11.5. Use of fraudulent bank statements by foreign nationals to obtain visas

The use of fraudulent bank statements by foreign nationals to obtain visas, use of vacant land as proof of address to obtain visas and opening companies on the strength of fraudulent visas (this observation is made in relation to the Pastors and Prophets).

Based on the SIU investigations, the following systematic recommendations are made:

- The Department should consider developing a step-by-step guideline on how the verification should be conducted.
- The Department should consider strengthening its verification process prior to the issuance of visas.
- The Department should consider having quality assurers assess applications prior to the issuance of visas.

5.11.6. Asylum Seekers

- Asylum permits used as conduit to obtain PRPs, and subsequently South African citizenship.
- Soliciting bribes by the officials to check/process the asylum seeker applications.
- Use of personal assistant's email address by the senior officials to facilitate the asylum seeker processing (this is a subject of the SIU investigation).
- Lack of system integration (Border management and movement not monitored).
- Suspicious business partnership with the foreign nationals and questionable visa statuses (mining sector).
- Employee living beyond their means.

Based on the SIU investigations, the following systematic recommendations are made:

- The Department should consider vetting and conduct lifestyle audit on all employees, and should consider system integration, more so on the movement control, border management control and permitting.

5.11.7. System Integration

The Department should consider system integration on all its processes, including those of other government departments having linked to the Department.

The system integration should consider the interim findings of the SIU and the observations made.

6. Outcomes

6.1 Criminal Referrals

The SIU in its investigation found evidence pointing to criminality and referred those matters to the NPA to consider instituting criminal proceedings.

The SIU referred 275 Foreign Nationals to the NPA for possession and presenting of fraudulent documents.

6.2 Disciplinary Referrals

The SIU in its investigation found evidence pointing to misconduct and referred those matters to the Department to consider instituting disciplinary proceedings. The SIU made six referrals to the Department. One is concluded, and the official was dismissed, another official resigned, and four are in process.

6.2 Administrative Referrals

The SIU investigation found evidence indicating that the applicants are in the country illegally and referred those matters to the Department to consider deportation. The SIU made 100 administrative referrals to the Department. All referrals are receiving consideration from the Department.

6.3 Systemic Recommendations

The SIU submitted one consolidated report of systemic recommendations for consideration to the Department.

6.4 Investigation closed out

The SIU finalised 111 investigations closed out memorandums.

7. Conclusion and Sign Off

The investigation into all matters under Proclamation No. 154 of 2024 is still ongoing and is estimated to be concluded by September 2026.



Mr. LG. Lekgetho

Acting Head of the Special Investigating Unit

Date: 31/03/2026